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Case Number: 24AHCV00079 Hearing Date: June 25, 2026 Dept: P

[TENTATIVE] ORDER DENYING DEFENDANT'S MOTION FOR SUMMARY JUDGMENT

I. INTRODUCTION

This wrongful death action arises from the death of David Musaza, an 11-year-old student at San Gabriel Academy, who suffered a medical emergency while participating in a one-mile run during physical education class on January 12, 2023. After collapsing on the school's athletic field, David later died. Plaintiffs Celine Musaza, Innocent Musaza, and the Estate of David Musaza ("Plaintiffs") filed this action against Defendant Southern California Conference of Seventh-Day Adventists dba San Gabriel Academy ("SCC"), alleging negligence.

On March 25, 2026, SCC filed the instant motion for summary judgment. On June 8, 2026, Plaintiffs filed an opposition, and on June 12, 2026, SCC filed a reply.

Evidentiary objections

Defendants' objections

· The following objections are OVERRULED: Nos. 2-7

· The following objections are SUSTAINED: No. 1

Plaintiff's objections

· The Court OVERRULES Plaintiff's objections in their entirety.

II. LEGAL STANDARD

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) CCP Section 437c(c) "requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and

uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.) "The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings." (Juge v. County of Sacramento (1993) 12 Cal.App.4th 59, 67, citing FPI Development, Inc. v. Nakashima (1991) 231 Cal. App. 3d 367, 381-382.)

As to each claim as framed by the complaint, the defendant moving for summary judgment must satisfy the initial burden of proof by presenting facts to negate an essential element, or to establish a defense. (CCP § 437c(p)(2); Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1520.) Courts "liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party." (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.)

Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto.

To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

III. ANALYSIS

This action arises from the tragic death of David Musaza, a student at San Gabriel Academy, who suffered a medical emergency on January 12, 2023, while participating in a one mile run during physical education class. After collapsing on the school's athletic field, David was attended to by school personnel and emergency responders, but later died. Plaintiffs allege SCC negligently failed to timely initiate CPR and deploy an automated external defibrillator ("AED"), and that these failures contributed to David's death. SCC disputes liability and contends David died from the sequelae of an undiagnosed Chiari Type I malformation, a congenital neurological condition, rather than any deficiency in the school's emergency response.

SCC moves for summary judgment on the ground that Plaintiffs cannot establish causation. SCC contends the undisputed evidence demonstrates that David's death was caused by complications of undiagnosed Chiari Type I malformation resulting in compression of the ventral medulla and that no act or omission by SCC was a substantial factor in causing his death. (MSJ, p. 1.) Plaintiffs oppose the motion, contending material factual disputes exist regarding the cause of David's death and whether SCC's alleged failure to timely administer CPR and utilize an AED contributed to the outcome. Plaintiffs rely on expert testimony disputing SCC's assertion that David's death was solely attributable to an undiagnosed Chiari Type I malformation. (Opposition, pp. 1, 9-18.)

There is a triable issue of material fact as to the causation of David Masuza's death

Negligence requires: (1) a legal duty owed to the plaintiff to use due care; (2) a breach of that duty; (3) causation; and (4) damages. (County of Santa Clara v. Atlantic Richfield Co. (2006) 137 Cal.App.4th 292, 318.) The elements of a wrongful death claim "include (1) a 'wrongful act or neglect' on the part of one or more persons that (2) 'cause[s]' (3) the 'death of [another] person.' [Citation]" (Norgart v. Upjohn Co. (1999) 21 Cal.4th 383, 404.) (See also C.C.P. §377.60.)

As a preliminary matter, the Court notes that SCC's motion is directed primarily at causation. Although Plaintiffs have submitted evidence concerning SCC's alleged failures in responding to David's medical emergency, including expert testimony regarding emergency preparedness and response procedures, SCC's central argument is that none of those alleged failures caused David's death. Thus, the Court's analysis focuses on whether Plaintiffs have raised a triable issue of material fact as to causation.

Here, SCC met its initial burden by presenting evidence that David's death was caused by the complications of an undiagnosed Chiari Type I malformation and not by any act or omission of SCC. SCC principally relies on the declaration of Dr. Richard Rubenstein, a board-certified neurologist who has practiced clinical and forensic neurology since 1978. Dr. Rubenstein received his medical degree from Boston University School of Medicine, completed his neurology residency at Boston University, has served as an Assistant Clinical Professor of Neurology at the University of California, San Francisco, and has provided expert testimony in more than 500 matters. (Rubenstein Decl., ¶¶ 3-6.)

After reviewing the autopsy report, neuropathology findings, medical records, and deposition testimony of the treating and examining physicians, Dr. Rubenstein opines, to a reasonable degree of medical certainty, that David's death resulted from the sequelae of an undiagnosed Chiari Type I malformation. (Rubenstein Decl., ¶ 30.)

Dr. Rubenstein further opines that any delay in administering CPR, using an AED, or contacting emergency responders would not have changed the outcome because David's collapse was caused by a sudden and irreversible neurological event. (Rubenstein Decl., ¶¶ 37, 41, 45, 47.) According to Dr. Rubenstein, once David lost consciousness, no emergency intervention could have saved his life, and survival would have been unlikely even if the collapse had occurred in a hospital setting. (Rubenstein Decl., ¶¶ 37, 41.) This evidence is sufficient to satisfy SCC's initial burden on summary judgment.

The burden therefore shifts to Plaintiffs to demonstrate the existence of a triable issue of material fact. The Court finds that Plaintiffs have met that burden.

Plaintiffs submit the declarations of Dr. Christopher A. Sarkiss, a board-certified neurosurgeon and founder of the Global Brain and Spine Institute, Dr. Suzanne M. de la Monte, a board-certified neuropathologist, and David Cash, Ph.D., an expert in emergency response systems and practices. Dr. Sarkiss previously held academic appointments in neurological surgery, including as a Clinical Adjunct Assistant Professor at the University of Wisconsin School of Medicine and Public Health. (Sarkiss Decl., ¶ 3.) Dr. Sarkiss states that he reviewed, among other materials, the autopsy report, medical records, deposition testimony, sheriff's reports, fire department records, AED records, the 911 audio recording, and the declaration of Dr. Rubenstein before forming his opinions. (Sarkiss Decl., ¶ 5.)

Based on his review, Dr. Sarkiss opines that the findings identified in the autopsy report as evidence of Chiari Type I malformation may also be observed in a person experiencing oxygen deprivation during the dying process. According to Dr. Sarkiss, oxygen deprivation can cause brain swelling and downward herniation that may resemble the findings relied upon in the autopsy report. (Sarkiss Decl., ¶ 8.)

Plaintiffs also submit the declaration of Suzanne M. de la Monte, M.D., M.P.H., a licensed neuropathologist who has practiced at several major hospitals and held academic positions at Harvard Medical School and Brown University. (de la Monte Decl., ¶¶ 3-4.) Dr. de la Monte reviewed the autopsy report, medical records, deposition testimony, emergency response records, and Dr. Rubenstein's declaration before forming her opinions. (Id., ¶ 6.)

Based on her review, Dr. de la Monte opines that she cannot confirm the autopsy's conclusion that David's death was caused by a Chiari Type I malformation without additional information. (Id., ¶ 9(a).) She further opines that the autopsy findings may also be consistent with brain swelling caused by cardiac arrest and lack of oxygen to the brain. (Id., ¶ 9(b).) Dr. de la Monte also notes that sudden death from an otherwise asymptomatic Chiari Type I malformation is extremely rare. (Id., ¶ 9(c).)

Finally, Dr. de la Monte disagrees with Dr. Rubenstein's opinion that emergency intervention would not have changed the outcome. According to Dr. de la Monte, timely CPR and defibrillation were critical to David's chances of survival and delays in providing emergency care significantly reduced those chances. (Id., ¶¶ 9(d)-(f).)

The Court finds a triable issue of material fact exists as to causation. The parties have submitted competing expert testimony regarding both the cause of David's death and the effect of SCC's emergency response. SCC's experts attribute David's death to an undiagnosed Chiari Type I malformation and opine that earlier intervention would not have changed the outcome. Plaintiffs' experts challenge that conclusion and offer alternative explanations for David's death while further opining that

delays in CPR and AED deployment reduced David's chances of survival. Resolution of these competing opinions would require the Court to weigh the credibility and persuasiveness of expert testimony, which is inappropriate at the summary judgment stage.

Based on the foregoing, the Court DENIES SCC's motion for summary judgment.

IV. CONCLUSION AND ORDER

The Court DENIES SCC's motion for summary judgment.

SCC is to give notice.

Dated: June 25, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT